

TAB 1



Board of Education Report

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File #: Rep-087-23/24, **Version:** 1

Approval of Procurement Actions

November 14, 2023

Procurement Services Division

Action Proposed:

Ratify the contract actions taken by the Procurement Services Division within delegated authority as listed in Attachment “A” including the approval of award of Professional Service Contracts not exceeding \$250,000: New Contract; Purchase Orders; Goods and General Services Contracts: Purchase Orders; District Card Transactions; Rental of Facilities; Travel/Conference Attendance; General Stores Distribution Center; and Book/Instructional Material Purchase Orders; and approve Professional Service Contracts (exceeding \$250,000): New Contracts; and Goods and General Services Contracts (exceeding \$250,000): New Contracts; and Donation as listed in Attachment “B.”

Background:

Procurement Services staff prepares monthly reports for contract actions necessary for the execution of the projects approved by the Board for the educational and operational requirements of the District in accordance with Board delegated authority to the Superintendent.

Expected Outcomes:

Approval of these items will allow the goods and services provided by these contracts furnishing the equipment, supplies, or services to the Los Angeles Unified School District that support Board policies and goals.

Board Options and Consequences:

The Board can approve all actions presented, or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment “A” will result in immediate unavailability of products or discontinuance of services, or both. While non-ratification may be legally defensible, it would likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer vendors compete for future procurements. Postponement of actions presented for approval in Attachment “B” will delay contract award or delivery dates.

Policy Implications:

This action does not change District policy and conforms to *California Education Code section 17604* that permits the Board of Education to delegate authority for Procurement Services (Board Report 444-17/18), which the Board exercised on May 8, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Ratification of contracts awarded under delegation of authority and within their Board approved budget listed in Attachment “A” includes:

- Award of Professional Service Contracts not exceeding \$250,000: New Contract; Purchase Orders; and
- Goods and General Services Contracts not exceeding \$250,000: Purchase Orders; Rental of Facilities; Travel/Conference Attendance; District Card Transactions; General Stores Distribution Center; and Book/Instructional Material Purchase Orders.

Request for Approval of Procurement Actions not under delegated authority listed in Attachment “B” includes:

- Professional Service Contracts (exceeding \$250,000): New Contracts; and
- Goods and General Services Contracts (exceeding \$250,000): New Contracts; and Donation

Student Impact:

Not applicable.

Equity Impact:

See attached for applicable items.

Issues and Analysis:

There are no policy implications on these agreements. The Business and Government Services Team, Office of the General Counsel, has reviewed and approved the agreements as to form, except where “authorization to negotiate and execute” is sought.

Attachments:

Attachment “A” - Ratification of Contracts Awarded Under Delegated Authority

Attachment “B” - Request for Approval of Contracts Not Under Delegated Authority

Previously adopted Board report referenced in the policy implications section:

- Adopted May 8, 2018: [Board Report No. 444-17/18](https://drive.google.com/file/d/1LObScI2aOLv21Poz24gkLDhfVRiE6a8K/view?usp=share_link)
<https://drive.google.com/file/d/1LObScI2aOLv21Poz24gkLDhfVRiE6a8K/view?usp=share_link>
- California Education Code Section 17604 ([CE Code 17604](https://drive.google.com/file/d/17i1CYUp6UH9-Gg-3DJMkxNEuH1uUQERc/view?usp=share_link))
<https://drive.google.com/file/d/17i1CYUp6UH9-Gg-3DJMkxNEuH1uUQERc/view?usp=share_link>

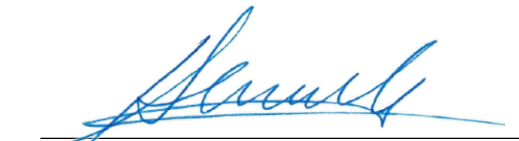
Informatives:

Not applicable.

Submitted:

10/17/23

RESPECTFULLY SUBMITTED,



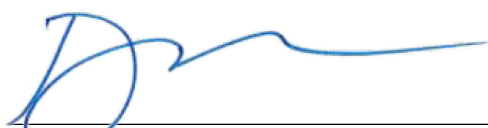
ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:



PEDRO SALCIDO
Deputy Superintendent
Business Services & Operations

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

✓ Approved as to form.

APPROVED & PRESENTED BY:



SUNGYON LEE
Deputy Chief Business Officer
Office of the Deputy Chief Business Officer

REVIEWED BY:



NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

✓ Approved as to budget impact statement.

APPROVED & PRESENTED BY:



CHRISTOPHER MOUNT-BENITES
Chief Procurement Officer
Procurement Services Division

ATTACHMENT A

APPROVAL OF PROCUREMENT CONTRACTS: RATIFICATION OF DELEGATED AUTHORITY**A. PROFESSIONAL SERVICES CONTRACTS ALREADY AWARDED****NEW CONTRACTS/AMENDMENTS/ASSIGNMENTS NOT EXCEEDING \$250,000****Item A****OFFICE OF THE CHIEF STRATEGY OFFICER \$207,000**

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Ascendant Strategy Management	4400010915	General Funds (100%)	\$207,000

Ratification of informally competed best value contract to provide “ClearPoint” system to track, monitor and report the progress on the implementation of the District’s Strategic Plan.

Three proposals were received of which three were deemed qualified. The selection committee was composed of two people from the former Office of the Chief of Schools and one person from the Superintendent’s Office. The evaluation criteria were technical qualifications, experience and qualifications of firm, experience and qualifications of personnel, Small Business Enterprise (SBE) participation, and price. The recommended vendor was the highest scored proposer.

Ascendant Strategy Management has been doing business with the District since 2013.

This action supports all five Pillars of the Strategic Plan.

Contract Term: 10/14/22 through 10/16/26, includes two (2) one-year renewal options

Aggregate Four-Year Contract Value: \$207,000

Requester:

Veronica Arreguin, Chief Strategy Officer
Office of the Chief Strategy Officer

Equity Impact:

Component	Score	Score Rationale
Recognition	3 Affirmatively recognizes historical inequities	The 2022-26 Strategic Plan recognizes the importance of differentiating support based on need as the pandemic disproportionately impacted certain communities and student populations. Pillars, priorities and strategies in the Strategic Plan demonstrate Districtwide support of learning recovery and acceleration for all students,

ATTACHMENT A

APPROVAL OF PROCUREMENT CONTRACTS: RATIFICATION OF DELEGATED AUTHORITY

Component	Score	Score Rationale
		furthermore strategies in the plan actively recognize historical inequities for specialized student populations and the need to address these with equitable approaches. The ClearPoint Strategy dashboard is used to monitor progress towards measures of success in the Strategic Plan.
Resource Prioritization	3 Prioritizes resources based on student need	As data is entered into ClearPoint, performance measures aggregate up to organization-wide objectives, directly showing the impact of department performance measures on LAUSD objectives. All elements including objectives and performance measures can be automatically evaluated so that as soon as data is entered into ClearPoint, users can see if they are meeting their objectives. Elements are evaluated based on performance against target, percent complete, adherence to budget, or other data points that are relevant to the measure or project. This visibility and transparency allow employees organization-wide to see how their performance contributes to the overall success of LAUSD and how they can improve. Resource prioritization varies from a Districtwide lens to a targeted approach based on student need inclusive of relevant quantitative and qualitative student and school data. The Strategic Plan prioritizes personnel and programs that can most directly and immediately have an impact on student achievement. Many priorities and strategies are structured so that the students and schools most in need will receive the greatest amount of support. Through implementation support, progress monitoring and impact evaluation, we will be able to modify our approach to increase equitable distribution of resources that directly address needs at school sites, communities of schools and regions.
Results	3 Likely to result in closed opportunity gaps and/or closing achievement gaps	The ClearPoint Strategy cloud-based software acts as a central data source for LAUSD, allowing leadership to easily find department performance metrics and focus solely on analyzing data and making decisions to improve performance.

ATTACHMENT A

APPROVAL OF PROCUREMENT CONTRACTS: RATIFICATION OF DELEGATED AUTHORITY

Component	Score	Score Rationale
		ClearPoint is an end-to-end solution for strategy reporting. With ClearPoint, LAUSD can easily enter and track performance measures. Departments can track strategies, objectives, initiatives, key performance indicators, and action items, and link and align them to measures of success. ClearPoint can handle both quantitative and qualitative information for each of the elements. Overall, strategies in the Strategic Plan are likely to result in closed gaps in opportunities and outcomes for all students. Student data is being utilized both to identify areas of need as well as to determine how resources are spread across the district to address that need. Pillars, priorities and strategies focusing on Early Education programs, BSAP, HEET, supports for English Learners, Special Education, A-G intervention and targeted literacy and numeracy support will serve our students most in need to close opportunity gaps.
TOTAL	9	

ATTACHMENT A

APPROVAL OF PROCUREMENT CONTRACTS: RATIFICATION OF DELEGATED AUTHORITY**Item B – September 2023****B. PROFESSIONAL SERVICE NOT EXCEEDING \$250,000****September 2023 = \$5,079,543****YTD = \$9,844,397**

The contract actions represented below are those actions put in place within each sponsoring school's or division's approved budget. These delegated procurement methods represent streamline ordering tools that assist schools and offices in meeting immediate mission-essential needs for professional services.

	<u>September Qty of POs</u>	<u>YTD Qty of POs</u>	<u>September Total</u>	<u>YTD Total</u>
Purchase Orders – <i>September 2023</i>	373	908	\$5,079,543 (Median - \$7,100)	\$9,844,397

September 2023=\$28,521,388**C. GOODS AND GENERAL SERVICES NOT EXCEEDING \$250,000****YTD = \$102,254,727**

The contract actions represented below are those actions put in place within each sponsoring school's or division's budget. These delegated procurement methods represent streamline ordering tools that assist schools and offices in meeting immediate mission-essential needs for goods or general services.

	<u>September Qty of POs/ Transactions</u>	<u>YTD Qty of POs/ Transactions</u>	<u>September Total</u>	<u>YTD Total</u>
Purchase Orders – <i>September 2023</i>	4,370	12,728	\$12,615,244 (Median - \$835)	\$41,636,965
DISTRICT CARD TRANSACTIONS (i.e., P- Card, Fuel Card, Toshiba Card, etc.) – <i>September 2023</i>	14,101	28,435	\$5,249,513 (Median - \$115)	\$10,267,798
Rental Facilities – <i>September 2023</i>	4	7	\$170,422 (Median - \$37,788)	\$264,543
Travel/Conference Attendance <i>September 2023</i>	320	871	\$562,580 (Median - \$1,639)	\$1,609,723
GENERAL STORES DISTRIBUTION CENTER <i>September 2023</i>	177	576	\$3,160,055 (Median - \$6,723)	\$14,622,251
BOOK/INSTRUCTIONAL MATERIAL PURCHASE ORDERS (BPO) <i>September 2023</i>	589	1,407	\$6,763,574 (Median - \$4,215)	\$33,853,447
GRAND TOTAL – September 2023				\$33,600,931

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

A. APPROVAL OF PROFESSIONAL SERVICE CONTRACTS

NEW CONTRACTS/ AMENDMENTS/AUTHORIZATION TO INCREASE CONTRACT CAPACITY EXCEEDING \$250,000

Item C

DIVISION OF COMMUNICATION, ENGAGEMENT, AND COLLABORATION **\$2,000,000**

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Various Vendors	TBD	Community Challenge Grant Unrestricted General Funds (100%)	\$2,000,000

Authorization to negotiate and award a total of \$2,000,000 in individual Community Challenge grants to tax-exempt community organizations over a three-year period, to provide high-quality after-school enrichment activities/services. to District students.

As a strategy to increase engagement with the broader Los Angeles community, the District is providing tax-exempt organizations an opportunity to apply annually for a \$25,000 to \$50,000 grant to provide support services that meet the academic and social-emotional growth of students and their families. Services can include, but are not limited to, literacy and numeracy supports, tutoring, mentoring, classes in theater, dance, music, service learning opportunities, field trips to colleges and universities, and family workshops and educational events.

The Office of Development and Civic Engagement will be responsible for the management of outreach activities and convening central office teams to assess Community Challenge grant applications, which will be accepted yearly by a specified deadline. The Office will work with Procurement, Finance, Risk Management, and Division of Instruction to issue grant awards, create reports, and implement the program. The Office of Development and Civic Engagement will launch a solicitation for grant applications this fall and establish a committee of internal reviewers to review and recommend grantee recipients. Procurement will submit the selected grant recipients' contracts for Board ratification.

Grant applications will be evaluated on the following criteria:

- Qualification and experience serving communities of [focus schools for community challenge grant](#)
- Experience working directly with LAUSD (higher weight given to those with less experience)
- Proposal of Services
- Operations and Community Relations
- Innovation and Outcomes

ATTACHMENT B
REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

Organizations must have pre-existing and secular programming and be able to meet the District's liability insurance and fingerprinting requirements based on the type of services that will be provided. Grantees will be required to provide a mid-year report that demonstrates the impact of the services to receive further funding installments. Organizations must also provide an end-of-year report to assess the impact of programming and provide a mid-year report that demonstrates the impact of the services to receive further funding installments. Organizations must also provide an end-of-year report to assess the impact of programming.

It is expected that grants will be awarded to at least 20-30 new and existing organizations who will be engaged in supporting 600-1,200 students and their families. The program will provide the District with an opportunity to engage with tax-exempt community-based organizations with deep roots within the communities we serve, that do not currently have an active contract with the District, to expand the universe of organizations and people supporting District schools and students. Organizations will be expected to provide direct services outside of the instructional day at their site, located in the L.A. County region.

Below are the expected outcomes from the grant awards:

Academics	Social Emotional	Family Engagement	College & Career Readiness
Improve literacy	Grow in social-emotional competencies	Increase Parent Portal usage	Increase A-G completion rates
Improve numeracy skills	Promote active lifestyles	Amplify District resources and messaging	Increase support with financial aid
Increase STEAM educational opportunities	Promote healthy nutrition	Provide additional educational resources	Provide internship opportunities
Increase tutoring participation	Increase mentorship		Increase career exposure including CTE pathways

The Community Challenge Grants align with the following Local Control and Accountability Plan Goals and the LAUSD Strategic Plan:

- Academic Excellence
- Joy and Wellness
- Engagement and Collaboration
- English Learner Supports
- Black Student Achievement Plan

Grant Term: 11/15/23 through 06/30/24 with option to renew grant for two years depending on funding availability.

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

Total Grant Value: \$2,000,000

Requester:

Shannon Haber, Chief of Communications, Engagement and Collaboration

Equity Impact:

Component	Score	Score Rationale
Recognition	4 Actively recognizes and specifies historical inequities to correct	Grant evaluation criteria prioritizes organizations that serve in high-need areas as well as TSP students. The program overall recognizes the importance of partnering with organizations that are trusted within the community and work closely with, and have a deep knowledge of, historically disadvantaged groups. Funded grant proposals will include those that prioritize academic excellence, health and wellness and family engagement—often where we see the greatest inequities in access and outcomes.
Resource Prioritization	4 Effectively prioritizes resources based on student need	Preference will be given to grantees that serve Priority School and SENI communities which have demonstrated a high need for student support. Organizations who have a demonstrated track record of trust and engagement with those communities will also be given preference.
Results	4 Extremely likely to result in closed opportunity gaps and/or closing achievement gaps	The Community Challenge Grant is expected to result in an additional network of support for students to receive the academic and social-emotional support to succeed in the classroom.
TOTAL	12	

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

A. APPROVAL OF PROFESSIONAL SERVICE CONTRACTS

NEW CONTRACTS/ AMENDMENTS/AUTHORIZATION TO INCREASE CONTRACT CAPACITY EXCEEDING \$250,000

Item D

<u>OFFICE OF THE CHIEF MEDICAL DIRECTOR</u>			\$10,000,000
<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Various Vendors*	4400011330	General Funds	\$10,000,000**
	4400011331	(67%)	
	4400011332	Restricted	
	4400011333	General	
	4400011334	Funds	
	4400011335	(33%)	
	4400011336		
	4400011337		
	4400011338		
	(RFP 2000002841)		

*22nd Century Technologies, Inc.; Lancesoft, Inc.; Maxim Healthcare Staffing Services, Inc.; New Direction Solution LLC dba Procure Therapy; New Mediscan II, LLC dba Cross Country Education; RCM Technologies (USA), Inc. dba RCM Health Care Services; Ro Health, LLC; SHC Services, Inc. dba Supplemental Health Care; The Stepping Stones Group, LLC

Authorization to increase capacity of formally competed bench of nine (9) contracts with qualified temporary staffing agencies to provide nursing services for students. The initial authorization of \$800,000 has been expended. The authority to increase or decrease individual amounts for these contracts will be limited to the aggregate value of \$10,800,000.

While the District is steadily increasing its nursing workforce, there is still a shortage, with approximately 250 vacancies. To help offset this, and the increasing number of students with specialized health needs, it is expected that approximately 36-40 licensed vocational nurses will be placed throughout the District (approximately 10 per Region). Deployment of such resources is determined by the nursing administrator in each Region and would occur when and where sufficient District employees and substitutes are not available. Additional nursing services will support the health and safety of all students, keeping students healthy so they can remain in school and ready to learn, thereby improving attendance rates. As more District nurses are hired, the District will continue to reevaluate the need for staffing agency nurses.

A total of 27 proposals were submitted, of which, 25 were deemed qualified. The nine selected firms had the highest scoring proposals and their services coincided within the available budget. The source selection committee consisted of nine panelists including one Interim Special Education Specialist; two School Nurses; one School Support Administrator; two Nursing

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

Administrators; one Special Education Resource Nurse; one Administrative Coordinator; and one Senior Physician, all from the Office of the Chief Medical Director. The firms were evaluated on firm experience and qualifications, personnel qualifications, ability to attract and retain qualified candidates, billing rates, Small Business Enterprise (SBE) utilization, and Work Based Learning Partnership (WBLP) plan.

The services align with Strategic Plan Pillar 2, Joy and Wellness, with priorities of Whole-Child/Well-Being and Outstanding Attendance. Whole-Child/Well-Being supports students through integrated health, nutrition, and wellness services. This is important because attending to the well-being of the whole child lays a solid foundation for learning and development. Ensuring outstanding attendance supports consistent in-class learning, which is important because being engaged and on campus is essential for students to learn.

Contract Term: 05/08/23 through 05/09/28

Initial Authorized Value: \$800,000
 **Additional Authorized Value: \$10,000,000
Aggregate Value For Nine (9) Contracts: \$10,800,000

Requester:

Dr. Smita Malhotra, Chief Medical Director
 Office of the Chief Medical Director

Equity Impact:

Component	Score	Score Rationale
Recognition	3 Affirmatively recognizes historical inequities	Affirmatively recognizes historical inequities by providing health care services to all students equally.
Resource Prioritization	3 Prioritizes resources based on student need	Prioritizes resources based on student need by providing health care services to students as it relates to their unique and specific health needs.
Results	3 Likely to result in closed opportunity gaps and/or closing achievement gaps	Likely to result in closed opportunity gaps and/or closing achievement gaps by providing health care services to all students thereby resulting in the minimizing gaps in access.
TOTAL	9	

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

A. APPROVAL OF PROFESSIONAL SERVICE CONTRACTS

NEW CONTRACTS/ AMENDMENTS/AUTHORIZATION TO INCREASE CONTRACT CAPACITY EXCEEDING \$250,000

Item E**OFFICE OF THE GENERAL COUNSEL****\$250,000,000**

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Acker & Whipple, APC;	4400012180	General	\$250,000,000
Artiano Shinoff Abed Carelli	4400012182	Funds	(Previously
Sleeth & Wade APC;	4400012183	(75%)	approved BOE Rep
Cummings, McClorey, Davis,	4400012184		Nos. 233-20/21,
Acho & Associates, P.C.;	4400012185	Bond	319-20/21, and
Collinson, Daehnke, Inlow &	4400012186	Funds	216-21/22)
Greco (SBE);	4400012187	(25%)	
Dannis Woliver Kelley;	4400012188		
Fagen Friedman & Fulfrost;	4400012189		
Floyd Skeren Manukian,	4400012190		
Langevin, LLP;	4400012191		
Greenspoon Marder LLP;	4400012192		
Kahana & Feld, LLP;	4400012193		
McCune & Harber, LLP (SBE);	4400012194		
Peacock Piper Tong + Voss	(RFP 2000003074)		
LLP;			
Silver & Wright LLP;			
Tobin Lucks, LLP;			
Tyson & Mendes, LLP;			

*Albright, Yee & Schmit, APC (SBE); Allen Matkins Leck Gamble Mallory & Natsis LLP; Anderson, McPharlin & Connors LLP; Andrade Gonzalez LLP (SBE); Armstrong & Sigel, LLP (SBE); Artiano Shinoff Abed Blumenfeld Carelli Sleeth & Wade APC; Bacio & Associates; Ballard Rosenberg Golper & Savitt LLP; Bergman Dacey Goldsmith PLC (SBE); Best Best & Krieger LLP; Black and Rose LLP (SBE); Browne George Ross LLP; Carlson & Messer LLP; Clark Hill PLC; Clyde & Co US LLP; Coleman Chavez Associates LLP; Dannis Woliver Kelley; Eng & Nishimura (SBE); Fagen Friedman & Fulfrost; Finney Arnold LLP; Floyd Skeren Manukian Langevin, LLP; Garcia Hernandez Sawhney LLP; Grant, Genovese & Baratta, LLP; Greenberg Traurig LLP; Groveman Hiete LLP; Gutierrez, Preciado & House, LLP (SBE); Hanger, Steinberg, Shapiro & Ash, ALC; Hanna Brophy MacLean McAleer & Jensen LLP; Harris & Associates (SBE); Harrison, Eichenberg & Murphy LLP; Hawkins Delafield Wood LLP; Hayford Felchin Valencia & McWhorter LLP; Hurrell Cantrall LLP; Jackson Lewis PC; Jones Day; Kegel, Tobin & Truce, APC; Kessel & Megrabyan (SBE); Koeller Nebeker Carlson Haluck LLP; Laughlin, Falbo, Levy & Moresi LLP; Law Offices of Weitzman & Estes (SBE); Lewis Brisbois Bisgaard & Smith LLP; Liebert Cassidy Whitmore; Liebman, Quigley & Sheppard; Littler Mendelson PC; Lozano Smith; Meyers Nave Riback Silver & Wilson; Michael

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

Sullivan & Associates LLP; Olivarez Madruga Lemieux O'Neill LLP; Orbach Huff Suarez & Henderson LLP; Orrick Herrington & Sutcliffe LLP; Peacock Piper Tong & Voss LLP; Peterson Bradford Burkwitz **(SBE)**; Pillsbury Winthrop Shaw Pittman LLP; Russell Legal Group **(SBE)**; Sanders Roberts; Strumwasser & Woocher LLP **(SBE)**; Theodora Oringher PC; Tobin Lucks LLP; and Vanderford & Ruiz LLP **(SBE)**

Approval to execute fourteen (14) formally competed retainer agreements to be added to the existing* bench of fifty-nine (59) agreements via “refresh” to provide outside counsel legal services to support the Office of the General Counsel (OGC). The aggregate value of these retainer agreements remains the same at \$250,000,000 as previously approved by the Board ([Board Report Nos. 233-20/21, 319-20/21, and 216-21/22](#)). The authority to increase or decrease the amounts of these agreements will be limited to the aggregate value of \$250,000,000.

These services are necessary to supplement the legal services bench to provide additional capacity to defend the District in personal injury lawsuits filed by third parties alleging they suffered injuries arising out of sexual abuse molestation, vehicular accidents, fighting/bullying incidents at schools, premises liability, wrongful death, brain traumas, etc.

The addition of 14 formally competed retainer agreements, will allow for robust representation of the District in lawsuits against insurance carriers for failing to defend and/or indemnify the District in those types of personal injury cases. Currently, since California Assembly Bill (AB) 218 was passed, the District has had to confront a substantial increase in the filing of these lawsuits and there is an urgent demand for more law firms with these specific areas of expertise to support the OGC’s efforts. The capacity of the existing Outside Legal Services Bench in this specific area of specialization has exceeded its limits. An expansion of the existing legal services bench contracts with the addition of fourteen (14) law firms, will increase the OGC’s opportunity and access to these services, bolster the District’s efforts in the continuation of needed legal services to support the ongoing and anticipated litigation workload and accomplish the goal of empowering the OGC to defend the District effectively and successfully against these lawsuits.

The initial Request for Proposal (RFP) was conducted in 2020, fifty-nine (59) proposals were received, and all were deemed qualified. An RFP “refresh” was conducted in 2023, fourteen (14) proposals were received, and all were deemed exceptionally qualified. The Source Selection Committee was comprised of members of the Office of the General Counsel (OGC). Proposals were evaluated based on the following factors: Price/Cost Proposal, Qualifications and Experience of the Firm and Personnel, Diversity, Equity, and Inclusion (DEI) Plan, Small Business Enterprise (SBE) Utilization Program and Work-Based Learning Partnership (WBLP). Contracts were awarded to the responsible Law Firms whose proposals met the requirements stated in the RFP.

This action supports all the strategies listed in Pillars 2 and 3. The related strategic plan pillars and priorities and how it ties to this procurement are as follows: *Strategic Plan Pillar #2 – Joy and Wellness*, the focal point is to ensure safe, welcoming environments for students to better foster positive outcomes with emphasis on building strong social-emotional skills, resulting in whole-child well-being, and fostering strong school attendance and reduction in absenteeism/truancy. This pillar ties into the District’s core value of equity, improving overall safety at schools and increasing the number of students who feel safe at school free from abuse, bullying, sexual assault,

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

molestation, etc. *Strategic Plan Pillar #3* - Engagement and Collaboration, the central point here, is to build stronger relationships between the District and the wider community, improve the lines of communication, and establish a path to collaborative approach to resolving issues which will result in overall student success. This pillar ties into all three of the District's core values of equity, collaboration, and excellence.

Contract Term: 11/15/23 through 12/31/25

Initial Authorized Value: \$12,500,000

1st Authorized Value Increase: \$50,000,000

2nd Authorized Value Increase: \$187,500,000

Aggregate Value For Seventy-Three (73) Contracts: \$250,000,000

Requester:

Devora Navera Reed, General Counsel
Office of the General Counsel

Equity Impact:

Not applicable.

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

A. APPROVAL OF PROFESSIONAL SERVICES CONTRACTS

NEW CONTRACTS/AMENDMENTS/AUTHORIZATION TO INCREASE CONTRACT CAPACITY EXCEEDING \$250,000

Item F

INTERSCHOLASTIC ATHLETIC DEPARTMENT

\$0

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Home Town Ticketing, Inc.;	4400011708	Not applicable	\$0
Huddle Tickets, LLC, dba GoFan	4400011709		
	(RFP 2000002746)		

Approval of formally competed bench of two contracts to provide digital ticketing services in support of the Los Angeles Unified School District's Athletic and Associated Student Body programs. Contractors will be providing the following services District-wide: maintenance of full-service online digital ticketing platform; customer service support to school representatives/users on weekdays, evenings, and weekends; maintenance and reporting of payments/ transactions; and payments to schools/clients of funds generated via customer purchases. Any school hosting events may opt to use the digital ticketing platforms for purchases of entry tickets. This will minimize the handling of large amounts of cash, promoting school personnel safety and financial transparency.

The digital ticketing services aim to transition from cash and paper tickets to digital ticketing platforms with the ability to sell tickets online for student athletic events, graduations, proms, as well as other events requiring tickets for entry. Also, the use of digital ticketing services will meet the California Interscholastic Federation (CIF) Playoff requirements. Services will be of no cost to the District and participating schools will receive all the ticket face value minus fees and taxes deposited into their Associated Student Body accounts. Vendors will collect a minimal percent fee per ticket from the purchaser.

Four proposals were received and two were found qualified. The source selection committee consisted of subject matter experts from the Interscholastic Athletics Department, Division of Operations and Budget Services and Financial. Proposals were evaluated based on the following criteria: qualifications and experience of firm; project approach; fees for services; Small Business Enterprise (SBE) participation; and Work-Based Learning Partnership (WBLP) plan. Vendors in the competitive range were considered for award.

Home Town Ticketing, Inc. has been in business since 2016 and has provided ticketing services to clients such as Hillsborough County Public Schools, CIF Oakland Athletic League Commissioner, Minneapolis Public Schools, and Nevada Interscholastic Activities Association.

Huddle Tickets, LLC has been in business since 2001 and has provided ticketing services to large school district partners such as San Diego Unified School District (USD), Fresno USD, Miami-Dade County Public Schools, Atlanta Public Schools, and Houston Independent SD.

ATTACHMENT B
REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER
DELEGATED AUTHORITY

The bench of contracts supports the District’s Strategic Plan Pillar 2: Joy and Wellness by promoting health and wellness services through expanded opportunities for athletics, physical education and community events.

Contract Term: 12/01/23 through 11/30/28, includes two (2) one-year renewal options

Contract Value: \$0 (No cost to the District)

Requester:

Trenton Cornelius, Coordinator
Interscholastic Athletic Department

Equity Impact:

Component	Score	Score Rationale
Recognition	4 Actively recognizes and specifies historical inequities to correct	Standardizes the process of event ticket purchase(s) of Districtwide events.
Resource Prioritization	4 Effectively prioritizes resources based on student need	Requires less personnel to manage, large cash handling, and events supervision.
Results	4 Extremely likely to result in closed opportunity gaps and/or closing achievement gaps	Product will help generate revenue at all our schools.
TOTAL	12	

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY**B. APPROVAL OF GOODS AND GENERAL SERVICES CONTRACTS**

Authority to award contracts for furnishing equipment, supplies and general services. The total amount is only an estimate since the expenditures made against contracts are based upon purchases and/or approved invoices.

NEW CONTRACTS/ AMENDMENTS/AUTHORIZATION TO INCREASE CONTRACT CAPACITY EXCEEDING \$250,000**Item G**

<u>INFORMATION TECHNOLOGY SERVICES</u>			\$15,000,000
<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
H. Co. Computer Products, Inc., dba ThinkCP Technologies; Graybar Electric Co., Inc.;	4400012029 4400012040 4400012041	Various per requesting school or office	\$15,000,000
Malor & Co., Inc.	(IFB 2000003124)	(100%)	

Approval of formally competed capacity contracts through an Invitation for Bid (IFB) process to be used by District IT Services to purchase components/parts for repairs or installation of information technology hardware and equipment for schools and offices districtwide. The authority to increase or decrease individual amounts of these contracts will be limited to the aggregate amount of \$15,000,000.

The requested products will be procured by District IT Services at a discounted price through contracts. Furthermore, procurement of products through an IFB ensures the awarded components/parts will be compatible with LAUSD's hardware and equipment.

Three qualified bids were received and reviewed by three staff from Information Technology Services (ITS). The three winning bidders are the lowest, responsive and responsible bidders. Two out of the three awarded vendors (H. Co. and Graybar) have provided reliable, low-cost products to the District through purchase orders for over 10 years: H. Co. has been doing business with the District since 2013 and Graybar has been doing business with the District since 2013. Malor is a new vendor to the District with 11 years of experience in the business. Malor's major customers are located in New York: JB Corporation, Nassau County, and Enterprise Rental Car.

These contracts support the District's Strategic Plan Pillar 4: Operational Effectiveness Priority 4B: Modernizing Infrastructure. The District IT Services' ability to purchase components/parts for repairs or installation of Information Technology hardware and equipment is necessary for the improvement and maintenance of state-of-the-art facilities and for providing access to modern technology.

ATTACHMENT B
REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER
DELEGATED AUTHORITY

Contract Term: 12/01/23 through 11/30/26

Aggregate Value For Three (3) Contracts: \$15,000,000

Requester:

Soheil Katal, Chief Information Officer
Information Technology Services

Equity Impact:

Not applicable.

ATTACHMENT B
REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER
DELEGATED AUTHORITY

C. APPROVAL OF DONATION

Item H

OFFICE OF ENVIRONMENTAL HEALTH & SAFETY

\$0

Approval of donation of marine fossil bone bed to the California State University Channel Islands and Cabrillo Marine Aquarium.

During construction at the San Pedro High School Comprehensive Modernization Project, a shallow marine fossil bone bed from the Miocene Epoch (13 million years ago) was discovered. The Natural History Museum of Los Angeles is currently selecting important fossil materials for curation as required by paleontological compliance obligations. The remaining fossil rocks are of no value and to be donated to California State University Channel Islands and Cabrillo Marine Aquarium.

Term: One-time donation

Value: \$0

Requester:

Carlos Torres, Director
Office of Environmental Health & Safety

Equity Impact:

Not applicable.